

Mr Holland Risley
4 Amberley Gardens
Kingsteignton
TQ12 3RU

Martin Wrigley MP
House of Commons
Westminster
London SW1A 0AA

Subject: Zitherixon proposals — corrections for residents and next steps

Dear Martin,

Thank you for meeting me on Tuesday. I have attached the briefing I shared at our meeting. It summarises potential conflicts with local, county and national policy, and sets out the 2024 Biodiversity Net Gain requirement, which we believe is the most significant legal hurdle for the proposal.

I am grateful that you have written to residents of Kingsteignton and the wider area. I would be happy to circulate your letter to our community channels. Before I do, may I ask for one important amendment.

Your letter reads as though planning permissions already exist at Zitherixon, alongside a scoping opinion. This risks giving the impression that approval is a foregone conclusion. To avoid misunderstanding, could you clarify that there is no live permission to work Zitherixon and that any proposal will be assessed under current law and conditions. Historic mineral rights or old permissions do not provide a free pass today. Dormant or historic permissions must be reviewed and brought up to modern conditions before any restart, and dormant sites cannot lawfully resume until new conditions are agreed. In some cases old permissions can be extinguished.

I also ask that you reassure residents you will help to secure the best outcome by focusing on lawful process and transparent scrutiny. In particular:

A. Confirm publicly that you will champion a net improvement to our local natural environment, not just compliance. In practice this means pressing for the full ten percent Biodiversity Net Gain to be delivered in and around Kingsteignton and along the Teign, with early, like-for-like habitat creation close to the site, long-term management for at least thirty years, and visible community benefits. These should include new woodland and hedgerow planting that buffers homes and schools, improvements to riverside habitats and wildlife corridors, safe green links for residents, and transparent monitoring so people can see the gains delivered locally.

B. Press in Westminster for strict enforcement of the key legal and policy tests that will decide this scheme. These include Biodiversity Net Gain, the maintenance and enhancement of Strategic Green Infrastructure corridors, flood and hydrology standards for the River Teign, and protection of bat connectivity under the Habitats Regulations.

For clarity, my understanding of your position is as follows, and I would welcome confirmation or correction.

- You must remain neutral on the outcome of any planning application. I understand and respect this.
- You indicated that permissions already exist. Our understanding is that they do not, for the reasons set out above.
- You suggested that documents prepared by professionals are taken at face value. In practice the authority is not obliged to accept an Environmental Statement at face value. The burden rests with the applicant to demonstrate no harm, particularly along the Teign given the 2024 overflow event. If evidence is incomplete or doubt remains, further information can be required or permission refused.
- You noted that Teignbridge policies do not apply because Devon County Council is the minerals authority. While Devon County Council is the decision maker, Teignbridge policies on landscape, biodiversity, trees and amenity are still material and are routinely cited in minerals decisions.
- You advised that Tree Preservation Orders can protect trees. Thank you. We will submit applications on the prominent broadleaf stands near the rugby pitches, the trees that form valued views from the Broadway Road area, and along the Teign corridor.
- You observed that a company's general track record is not determinative. Agreed. It is, however, relevant to enforceability of conditions, the adequacy of the Environmental Statement and to regulator decisions on permits and operator competence.

Next steps we propose:

1. Please amend your open letter so residents are not left with the impression that the proposal already has planning permission. I will then circulate it to our community list and social channels.
2. We will apply for Tree Preservation Orders and continue to engage with Teignbridge and Devon councillors.
3. Please consider hosting a neutral roundtable with residents, Devon County Council, the Environment Agency and Natural England, so that officials can explain how Biodiversity Net Gain, Strategic Green Infrastructure, flood and hydrology, and Habitats Regulations tests will be applied at scoping and when the Environmental Statement is submitted.

Thank you again for your time and for your engagement with residents. A clear public statement on the points above, combined with practical process oversight, would give the community confidence that the proposal will be tested properly against the law.

Yours sincerely,



Holland Risley